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Case Number: 25NWCV04168 Hearing Date: July 27, 2026 Dept: SED

DAVID FERRER V. LESLIE

DENISE TIRADO, ET AL.

CASE NO.: 25NWCV04168

HEARING: 07/27/2026 @ 9:30 a.m.

#9

TENTATIVE ORDER

Defendant Leonardo Gerardo

Rosa Bucio's demurrer is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff David Ferrer shall

file and serve a First Amended Complaint within 30 days of notice of this ruling.

Moving party to give notice.

Defendant Leonardo Gerardo Rosa

Bucio (Defendant) demurs to Plaintiff David Ferrer's (Plaintiff) Complaint on the grounds that all causes of action asserted against him fail to state facts sufficient to constitute a cause of action.

Background

On November 24, 2025, Plaintiff

filed the operative Complaint against Defendants Leslie Denise Tirado, Leonardo Gerardo Rosas Bucio, and Roxana Hernandez, asserting four causes of action: (1) Defamation (per se) and (2) Intentional Infliction of Emotional Distress; (3) Negligent Infliction of Emotional Distress; and (4) Civil Conspiracy.

Plaintiff alleges that Defendants made knowingly false and defamatory statements during a Downey Unified School District (District) investigation into allegations of professional misconduct against Plaintiff, a Deaf and Hard of Hearing teacher. Plaintiff contends the statements were incorporated into the District's investigative records and subsequently republished in credential investigations, public records, and employment-related background inquiries, causing ongoing damage to his professional reputation, career, and emotional well-being.

On June 22, 2026, Defendant filed the instant motion.

On July 6, 2026, Plaintiff filed his opposition.

On July 20, 2026, Defendant filed a reply.

Legal Standard

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. *¿* (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v.

Kennedy (1976) 18 Cal.3d 335, 348.)

The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v.

YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.”

(Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Plaintiff is only required to

allege ultimate facts, not evidentiary facts.

(See Committee on Children's Television, Inc. v. General Foods Corp. (1983)

35 Cal.3d 197, 212 [“the complaint should set forth the ultimate facts

constituting the cause of action, not the evidence by which plaintiff proposes

to prove those facts”]; 1 Cal. Affirmative Def. § 10:2 (2d ed.) [allegations of

agency, course and scope of employment, etc. qualify as ultimate facts].) Plaintiff's allegations must be accepted as true on demurrer. (See Yvanova v. New

Century Mortgage Corp. (2016) 62 Cal.4th 919, 924 [“For purposes of

reviewing a demurrer, we accept the truth of material facts properly pleaded in the operative complaint”].)

Meet and Confer

Code of Civil Procedure section

430.41, subdivision (a) requires the moving party to meet and confer “in

person, by video conference, or by telephone” in an attempt to resolve a

demurrer's deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

Here, Defendant's counsel states

that he did not meet and confer with Plaintiff because he determined that doing

so would be futile under the circumstances. (Ash Decl., ¶¶ 4–7.) The Court does not find this explanation

sufficient to satisfy Defendant's meet and confer obligation under Code of

Civil Procedure section 430.41. Defendant

has therefore failed to demonstrate compliance with the statutory meet and confer requirement.

Nevertheless, section 430.41,

subdivision (a)(4), expressly provides that an insufficient meet and confer

process “shall not be grounds to overrule or sustain a demurrer.” Accordingly, although the Court finds

Defendant's meet and confer efforts inadequate, that deficiency does not

preclude the Court from considering the demurrer on its merits.

Analysis

Statute of Limitations

Defendant argues that each cause of action is barred by the applicable statute of limitations. (Demurrer p. 7.) Specifically, the facts underlying the events of the Complaint occurred in September of 2023, but Plaintiff did not file his Complaint until November 24, 2025. (Ibid.)

In opposition, Plaintiff responds that the statute of limitations cannot be resolved on demurrer because Defendant has not established from the face of the Complaint that the claims are untimely. (Opp., p. 12.) Plaintiff argues the Complaint alleges the defamatory statements became part of the District's investigative record, were relied upon during disciplinary proceedings, and continued to be used in subsequent administrative and legal proceedings affecting his employment, credentials, and professional reputation. (Ibid.) Plaintiff further contends that issues regarding accrual, delayed discovery, republication, and the continuing use of the alleged statements present factual questions that cannot be resolved at the pleading stage. (Id. at pp. 12-13.)

In reply, Defendant argues Plaintiff provides no factual support for his contention that the events underlying the Complaint continued beyond September 2023.

First Cause of Action: Defamation

An action for libel or slander must be brought within one year. (Code Civ. Proc., § 340, subd. (c); *Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1247 [accrues when defamatory statement is "published"].)

Here, Defendant has not established from the face of the Complaint that the defamation claim is barred by the statute of limitations. Although the Complaint alleges the original statements were made during the District's

September 2023 investigation, it also alleges those statements were incorporated into the District's investigative records, transmitted to other agencies, and repeatedly republished in credential investigations, administrative records, and employment-related background inquiries. (Complaint ¶¶ 15-16, 18, 23, 25.) Accepting those allegations as true for purposes of demurrer, the Court cannot conclude as a matter of law that the Complaint fails to allege a timely republication sufficient to defeat Defendant's statute of limitations defense.

Second,

Third, and Fourth Causes of Action

A cause of action for intentional infliction of emotional distress (IIED) and negligent infliction of emotional distress (NIED) are governed by the two-year statute of limitations set forth in Code of Civil Procedure section 335.1. (Code Civ. Proc., § 335.1; Pugliese v. Superior Court (2007) 146 Cal.App.4th 1444, 1450.) Civil conspiracy is not an independent tort but rather a theory of liability that depends upon the underlying wrongful conduct. (Wyatt v. Union Mortgage Co. (1979) 24 Cal.3d 773, 784, fn. 2; Kenworthy v. Brown (1967) 248 Cal.App.2d 298, 301.) Accordingly, the applicable statute of limitations for the conspiracy claim is determined by the underlying tort.

Here, the Complaint does not allege facts sufficient for tolling the applicable two-year statute of limitations governing the Second and Third Causes of Action. Although Plaintiff alleges continuing harm and continued republication of the alleged defamatory statements, those allegations, standing alone, do not establish that the IIED or NIED claims accrued at a later date or that the applicable limitations period was tolled. Likewise, because civil conspiracy is not an independent tort, but rather a theory of liability, it is subject to the statute of limitations applicable to the underlying wrongful conduct.

Accordingly, the demurrer to the Second, Third, and Fourth Causes of Action is SUSTAINED WITH LEAVE TO AMEND.

Civil

Code Section 47 Privileges

Defendant argues that Plaintiff's claims are barred by the privileges set forth in Civil Code section 47 because the challenged statements were made during the District's official investigation into Plaintiff's alleged misconduct. (Demurrer, pp. 8-9.) Defendant contends the communications are protected by the common interest privilege under Civil Code section 47, subdivision (c), because they were made between individuals sharing a common interest in investigating Plaintiff's conduct. (Id. at p. 8.) Defendant further argues the statements are privileged under Civil Code section 47, subdivision (b), because they were made in connection with an official proceeding authorized by law, namely the District's investigation and related administrative proceedings. (Id. at pp. 8-9.) Finally, Defendant argues the litigation privilege likewise applies because the investigation resulted in administrative proceedings before the Office of Administrative Hearings and related proceedings before the Commission on Teacher Credentialing. (Id. at p. 9.)

In opposition, Plaintiff argues Defendant has not established from the face of the Complaint that Civil Code section 47 bars Plaintiff's claims as a matter of law. (Opp., pp. 13-14.) Plaintiff contends the applicability of the asserted privileges depend upon disputed factual issues, including whether Defendant acted with malice or in good faith, whether the alleged statements were later republished or relied upon in subsequent proceedings, and whether the communications fall within the scope of the asserted privileges. (Ibid.) Plaintiff further argues Defendant improperly asks the Court to resolve factual disputes and draw inferences in Defendant's favor, which is inappropriate on demurrer. (Ibid.)

In reply, Defendant argues Plaintiff fails to identify any factual allegations demonstrating that the asserted privileges do not apply.

Civil Code section 47, subdivision (b) provides that a privileged publication includes one made in: (1) a legislative proceeding; (2) a judicial proceeding; (3) any other official proceeding authorized by law; or (4) the initiation or course of any other proceeding authorized by law and reviewable by writ of mandate.

The litigation privilege under Civil Code section 47, subdivision (b) is absolute. It applies regardless of malice and bars all tort causes of action except malicious prosecution. (Kenne v. Stennis (2014) 230 Cal.App.4th 953, 964-965 (Kenne).) The privilege is broad enough to encompass even knowingly false statements or evidence. (Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 969-970 (Seltzer).) As the California Supreme Court explained, the

privilege is intended "to assure utmost freedom of communication between citizens and public authorities whose responsibility is to investigate and remedy wrongdoing." (Silberg v. Anderson (1990) 50 Cal.3d 205, 213 (Silberg).)

Here, the Complaint alleges Defendant made the challenged statements during official interviews conducted by Downey Unified School District as part of its investigation into Plaintiff's alleged professional misconduct. (Compl. ¶¶ 13, 18.) Plaintiff further alleges those statements were incorporated into the District's investigative records and later relied upon in administrative and credentialing proceedings. (Compl. ¶¶ 15, 18, 23.)

The Court finds the challenged communications were made in connection with an official proceeding authorized by law within the meaning of Civil Code section 47, subdivision (b). Courts have consistently held that complaints made to school authorities concerning a teacher's conduct are communications made in anticipation of or during an official proceeding and are therefore protected by the litigation privilege. (Martin v. Kearney (1975) 51 Cal.App.3d 309, 311-313 [parents' complaints to school principal regarding teacher]; Brody v. Montalbano (1978) 87 Cal.App.3d 725, 732-734 [communications to school board regarding school employee]; Lee v. Fick (2005) 135 Cal.App.4th 89, 96-99 [complaints to school authorities concerning teacher's conduct privileged even absent an express request for investigation].)

Plaintiff argues the privilege cannot be resolved on demurrer because Defendant acted with malice, the statements were false, and factual disputes remain regarding the scope of the privilege. The Court is not persuaded. The litigation privilege is absolute and applies regardless of malice or the alleged falsity of the statements. (Silberg, *supra*, 50 Cal.3d at 216; Kenne, *supra*, 230 Cal.App.4th at 964-965; Seltzer, *supra*, 182 Cal.App.4th at 969-970.)

Because the Court concludes the challenged communications are absolutely privileged under Civil Code section 47, subdivision (b), the Court need not address Defendant's alternative argument under Civil Code section 47, subdivision (c). The litigation privilege likewise provides an independent basis for sustaining the tort claims arising from those communications.

Accordingly, the demurrer to the
first cause of action is SUSTAINED WITH LEAVE TO AMEND.

Conclusion

Based on the foregoing, Defendant
Leonardo Gerardo Rosa Bucio's demurrer is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff David Ferrer shall file
and serve a First Amended Complaint within 30 days of notice of this ruling.